

22STCV35239 22STCV35239

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV35239 Hearing Date: July 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

21, 2026

CASE NAME: Reginald

Hoffman v. County of Los Angeles, et al.

CASE NO.: 22STCV35239

MOTION

FOR PRODUCTION OF PEACE OFFICER PERSONNEL RECORDS

MOVING PARTY: Plaintiff

Reginald Hoffman

RESPONDING PARTY(S): Defendant County of Los Angeles

REQUESTED RELIEF:

1. An

order compelling production of highly relevant peace officer personnel records, including records from two interrelated internal investigations into Plaintiff (an ICB criminal investigation initiated against Plaintiff that the District Attorney rejected in 2025, and an ongoing IAB administrative investigation), and

Personnel of Equity complaints and IAB records concerning Defendant Captain Pilar Chavez for similar harassment and retaliation against two other LASD employees at the East Los Angeles station.

TENTATIVE RULING:

Granted in part, denied in part.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On November 3, 2022, Plaintiff Reginal Hoffman (Plaintiff) filed a complaint against Defendants County of Los Angeles (County) and Richard Mejia (Mejia) (sometimes collectively Defendants) with five causes of action for: (1) racial discrimination in violation of FEHA; (2) failure to take all reasonable steps to prevent discrimination in violation of FEHA; (3) harassment and hostile work environment in violation of FEHA; (4) retaliation in violation of FEHA; and (5) unlawful retaliation in violation of Lab. Code § 1102.5.

Plaintiff, an African-American LASD supervisor, alleges he was subjected to persistent racial harassment, discrimination, and hostile treatment by Mejia and members of the Banditos deputy gang, including being denied earned promotions and demeaned with racist remarks. He further alleges that after reporting racist conduct, deputy-gang retaliation, and unsafe practices—such as Banditos withholding backup for certain deputies—he faced escalating retaliation, adverse assignments, manipulation of promotion processes, and efforts to discredit him. Plaintiff further asserts the County knowingly allowed this discriminatory and retaliatory environment to persist for years, ratifying the conduct and failing to intervene even as Plaintiff suffered significant professional and personal harm.

On January 20, 2023, County filed a demurrer with motion to strike which the court OVERRULED the demurrer as to the third and fourth causes of action, DENIED the motion to strike as to portion Nos. 1, 4-9, 11, and GRANTED the motion to strike as to 2, 3, 10, 12-15.

On October 4, 2023, Plaintiff filed a stipulation and order for leave to amend which the court GRANTED.

On October 16, 2023, Plaintiff filed the operative first amended complaint (FAC). The FAC contains the same five causes of action as the

original complaint. It added new Defendant Pilar Chavez (Chavez). It also adds new factual allegations concerning Chavez, expanded retaliation allegations, additional timeframe and events, expanded allegations regarding station culture and racist gangs, and updated damages allegations.

On December 6, 2023, County and Mejia filed an answer to the FAC.

On June 12, 2025, Chavez filed an answer to the FAC.

On May 14, 2026, Plaintiff filed the instant motion for discovery of peace officer personnel records (Pitchess Motion). On July 8, 2026, County timely filed an opposition. On July 13, 2026, Plaintiff timely filed a reply.

LEGAL STANDARD:

There is a special two-step procedure for obtaining disclosure of peace or custodial officer personnel records. (Warrick v. Superior Court (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure must file a motion that includes all of the following:

Identification

of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard.

A

description of the type of records or information sought.

Affidavits showing

good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.

(Evid. Code, § 1043, subd. (b).)

The “good cause” declaration must be sufficiently specific “to preclude the possibility of [the movant] simply casting about for any helpful information.” (People v. Mooc (2001) 26 Cal.4th 1216, 1226.) The moving party need show only a “plausible factual foundation” for discovery -- i.e., a scenario of officer misconduct that might occur or could have occurred. (Warrick, supra, 35 Cal.4th at p. 1026; see also Blumberg v. Superior Court (2011) 197 Cal.App.4th 1245, 1248 [“[T]he good cause requirement embodies a “relatively low threshold” for discovery’ [citation], under which a defendant need demonstrate only ‘a logical link between the defense proposed and the pending charge’ and describe with some specificity ‘how the discovery being sought would support such a defense or how it would impeach the officer’s version of the events’ [citation].”]; Becerrada v. Superior Court (2005) 131 Cal.App.4th 409, 413 [“A showing of good cause is measured by ‘relatively relaxed standards’ that serve to ‘insure the production’ for trial court review of ‘all potentially relevant documents’”].) A declaration by counsel, on information and belief, may be sufficient. (People v. Oppel (1990) 222 Cal.App.3d 1146, 1153, fn. 6.)

Second, if the court finds good cause, then an in camera examination must be held. (Slayton v. Superior Court (2006) 146 Cal.App.4th 55, 61.) After examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are “relevant to the subject matter involved in the pending litigation.” (People v. Mooc, supra, 26 Cal.4th at p. 1226.) The court must exclude from disclosure “[f]acts sought to be disclosed that are so remote as to make disclosure of little or no practical benefit.” (Evid. Code, § 1045, subd. (b)(2).) “In determining relevance where the issue in litigation concerns the policies or pattern of conduct of the employing agency, the court shall consider whether the information sought may be obtained from other records maintained by the employing agency in the regular course of agency business which would not necessitate the disclosure of individual personnel records.” (Evid. Code, § 1045, subd. (c).) If disclosure is ordered, the court must also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” (Evid. Code, § 1045, subd. (e).)

ANALYSIS:

Plaintiff moves for production of the following records:

1. The

full file of the ICIB (Internal Criminal Investigations Bureau) criminal investigation initiated against Plaintiff Sergeant Reginald Hoffman (and members of his team, Deputy Jacob Dominguez, Deputy Alberto Maldonado, Deputy Joel Calderon, Deputy Israel Martinez, Deputy Joanna Palombi, Deputy Johnny Kang) on allegations of timecard fraud, which was concluded before LASD referred it to the Los Angeles County District Attorney who rejected the case in 2025, or, at minimum, all documents and records relating to the initiation, basis, investigation, evidence, findings, disposition, and outcome of that investigation, including but not limited to: (a) all documents initiating the investigation; (b) the complaint or referral underlying the investigation, including any complaint by or attributable to Defendant Pilar Chavez; (c) all investigator logs and case chronologies; (d) all witness and subject interview transcripts, recordings, and notes; (e) all documents obtained or generated by the investigators, including timecards, schedules, and any analyses of Plaintiff's hours; (f) the investigation summary and final and supplementary reports; (g) the District Attorney's rejection memorandum or charge evaluation worksheet; and (h) any disposition documents and any discipline imposed, proposed, or recommended.

2. The full file of the IAB (Internal Affairs

Bureau) administrative investigation initiated by LASD against Plaintiff Sergeant Reginald Hoffman (and members of his team, Deputy Jacob Dominguez, Deputy Alberto Maldonado, Deputy Joel Calderon, Deputy Israel Martinez, Deputy Joanna Palombi, Deputy Johnny Kang)) on the same or related timecard allegations, or, at minimum, all completed portions of the investigation and all existing documents relating to the initiation, basis, investigation, evidence, findings, proposed disposition, and any proposed or recommended discipline, including but not limited to: (a) all documents initiating the investigation, including any documents used to open the IAB investigation against Plaintiff; (b) all investigator logs and case chronologies maintained by any sergeant, lieutenant, or captain investigator or supervising investigator assigned to the matter; (c) all witness and subject interview transcripts, recordings, and notes (Plaintiff understands all interviews are complete); (d) all documents obtained or generated by the investigators; (e) the investigation summary or final report; and (f) any disposition documents, findings, and any discipline imposed, proposed, or recommended.

3. The full file of the Personnel of Equity

("POE") complaint filed against Defendant Captain Pilar Chavez by Lieutenant Shawn O'Donnell (POE intake date January 19, 2023; incident date January 18, 2023), and all related IAB records arising from or relating to that POE complaint, or, at minimum, all documents and records relating to the initiation, basis, investigation, witness interviews, evidence, findings, disposition, and any discipline imposed, proposed, or recommended, including all documents initiating the investigation, investigator logs, interview transcripts, the investigation summary, disposition documents, and any discipline imposed, proposed, or recommended.

4. The full file of the Personnel of Equity

("POE") complaint filed against Defendant Captain Pilar Chavez by Matt Taylor (POE filed February 15, 2023; incident date January 18, 2023), and all related IAB records arising from or relating to that POE complaint, or, at minimum, all documents and records relating to the initiation, basis, investigation, witness interviews, evidence, findings, disposition, and any discipline imposed, proposed, or recommended including all documents initiating the investigation, investigator logs, interview transcripts, the investigation summary, disposition documents, and any discipline imposed, proposed, or recommended.

Plaintiff contends good cause exists since all of the documents requested are relevant to Plaintiff's allegations and causes of action including for whistleblower retaliation and retaliation in violation of FEHA, racial discrimination, harassment, and failure to prevent discrimination. He adds that he satisfied the statutory requirements supporting this motion and that he must have access to this information to ensure a fair trial.

County argues: (1) Plaintiff has failed to establish good cause for the discovery

sought under Evidence

Code Section 1043 and 1045; (2) the Motion is not tailored to any specific officer misconduct and instead seeks entire investigative files as an impermissible fishing expedition; (3) the supporting declaration, made on information and belief, fails to set forth the plausible factual foundation of materiality required by *Warrick v. Superior Court*, particularly as to the two third-party POE complaints; (4) the Motion improperly seeks the confidential personnel and investigative records of six non-party deputies

against whom no misconduct is alleged; (5) the IAB administrative investigation remains ongoing and no findings or discipline have been issued, rendering production premature; (6) portions of the records sought are not peace officer personnel records within the meaning of Penal Code section 832.8 and/or are in the custody of a separate agency; and (7) any disclosure, must, in all events, be limited to in camera review under Evidence Code section 1045, subject to the mandatory exclusions of section 1045(b) and an appropriate protective order.

Plaintiff replies he seeks records at the center of his FEHA and whistleblower-retaliation claims, Plaintiff has made his showing of a relatively relaxed good-cause standard with a plausible factual foundation and logical link to the claims. He adds that any document-specific concerns can be addressed during in camera review.

1. Plaintiff Sergeant Reginald Hoffman – ICIB/IAB Investigation

GRANTED as to in camera review. Plaintiff has demonstrated good cause under Evidence Code sections 1043 and 1045. The requested ICIB and related IAB investigations concern Plaintiff himself and arise from the very investigations alleged to have been initiated in retaliation for his protected activity and race. Plaintiff has established a plausible factual foundation that the records are material to his FEHA and Labor Code section 1102.5 claims. (Warrick v. Superior Court (2005) 35 Cal.4th 1011.) Because Plaintiff is the subject of the investigations and a percipient witness to the underlying events, in camera review shall include those portions of the investigative files relevant to the claims and defenses in this action. To the extent disclosure is ultimately ordered, the court will determine the proper scope following its in camera review.

2. Plaintiff's Team (Deputies Jacob Dominguez, Alberto Maldonado, Joel Calderon, Israel Martinez, Joanna Palombi, and Johnny Kang)

DENIED. Plaintiff has not established good cause for in camera review of these deputies' personnel records. Although the deputies were also subjects of the same investigations, Plaintiff has not identified any specific misconduct by these deputies, any similar complaints contained within their personnel files, or articulated how their confidential personnel records

are material to the claims at issue. The request is therefore overbroad and does not satisfy the materiality showing required by Evidence Code section 1043 and Warrick. The mere fact that these deputies participated in the same investigation does not justify in camera review of their personnel files.

3. Captain Pilar Chavez – Prior POE Complaints by
Lieutenant Shawn O'Donnell and Matt Taylor

GRANTED as to in camera review. Plaintiff has made the relatively low threshold showing of good cause required for in camera review. Plaintiff specifically identifies two contemporaneous complaints against Captain Chavez alleging similar harassment and retaliation, identifies the complainants, relevant dates, and articulates that the complaints are offered as evidence of motive, intent, pattern, and absence of mistake in support of Plaintiff's FEHA retaliation and discrimination claims. This constitutes a plausible factual foundation demonstrating materiality under Warrick. Moreover, Evidence Code sections 1043 and 1045 do not limit in camera review to officers who directly participated in the events involving the plaintiff where the requested records are otherwise shown to be material. (*Riske v. Superior Court* (2016) 6 Cal.App.5th 647.) Because Captain Chavez was not merely a percipient witness to the underlying investigations but the subject of separate similar complaints, any subsequent disclosure, if warranted after in camera review, will ordinarily be limited to the identifying information of prior complainants and witnesses absent a further showing that such disclosure would be insufficient. (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079.)

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

Granted in part, denied in part.

Custodian of records to schedule in camera review with the
court.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court